

iDiscovery Solutions, Inc.

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JENNIFER A. BRENNAN

Director of Legal, Risk & Compliance

Jennifer has been at the helm of complex matter management since the late '90s, blending law firm savvy with consulting expertise to deliver results that matter.

She is part of iDS's team of testifying and consulting experts and strategizes with corporate and law firm clients to resolve complex issues related to law and technology and means to align litigation goals with discovery obligations. At iDS Jennifer leads engagements to prepare for, develop, and provide subject matter, opinion, and/or fact testimony in the form of written declarations and reports, depositions, and live testimony. She manages projects through the entire EDRM lifecycle, including preservation and collection protocols, technology assisted review (TAR) and data culling techniques, preparation for meet and confer negotiations, review and production strategies, and solutions to complex data management and disposition challenges.

Jennifer also serves as counsel to iDS and manages new business intake processes, including conflicts clearance workflows and contract negotiations, insurance procurement and reporting, and the evaluation of risk and compliance considerations.

Formerly a partner at Gilbert LLP, a Washington DC-based law firm, Jennifer has simultaneously supervised multiple litigation teams and experts to consistently meet time-sensitive and critical client objectives. In addition to her law degree, Ms. Brennan holds a Certificate in Project Management from Georgetown University.

A Minnesota native, Jennifer recently relocated from the Washington DC area to the Outer Banks of North Carolina.

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SELECT CONSULTING EXPERIENCE

- Led engagement to serve as 30(b)(6) designee to provide corporate testimony related to IT infrastructure, records management, data retention policies, and legal holds. Formulated strategy with counsel to obtain requisite subject matter knowledge and prepare designee for multiple depositions and hearing testimony.
- Managed compliance and internal investigations leveraging Brainspace® analytics platform and continuous multimodal learning workflows.
- Conducted IT and custodian interviews to identify potential locations where data for key departed employees may exist to facilitate compliance investigation.
- Developed protocol to restore targeted email and personal file share data from backup tapes and extract data from legacy email archive system. Oversaw execution and documentation of restoration activities and prepared 30(b)(6) designee.
- Directed team to architect methodology identifying emails in globally de-duplicated production set where custodians appeared as senders or recipients. Managed workflow and compilation of reports and prepared supporting declarations and 30(b)(6) testimony.
- Performed analyses of opposing party's productions to identify potential preservation, collection, processing and/or production deficiencies. Supported meet and confer negotiations challenging sufficiency of production and prepared expert declaration.
- Crafted and implemented defensible technology assisted review and data culling workflows to identify and produce responsive documents within four-week period. Educated subject matter experts on custom review protocol and vetted statistical validation reports.
- Prepared expert fact and opinion declarations regarding best practices, including search term protocols, format of production, email threading and deduplication.
- Evaluated G Suite and Google Vault log activity to identify administrator and user activity and patterns of Vault searches and exports for expert testimony.
- Coordinated FTC Second Request response, including data processing, 24/7 support of 120 attorney review team, and agency-compliant productions within a six-week timeframe.
- Analyzed application and system metadata to evaluate opposing party's possession and use of trade secret and confidential information for expert opinion.

EDUCATION

- Certificate of Project Management, Georgetown University, 2011
- JD, summa cum laude, American University, Washington College of Law, 1999
- BA in Political Science, cum laude, Carleton College, 1994

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PUBLICATIONS AND SPEAKING ENGAGEMENTS (PAST 10 YEARS)

1. FRCP: Playing by the New Rules, Interview along with Hon. Mitchell Dembin and Ruth Hauswith, Metropolitan Corporate Counsel, February 2017
2. The Federal Rules of Civil Procedure and IG, TGCI & IGI Information Governance Forum, Atlanta GA, November 2016
3. FRCP: Amendments to the Federal Rules of Civil Procedure: The Early Returns, Panel, Masters Conference, Washington DC, October 2016
4. How Much Tech Do I Need to Know? Metropolitan Corporate Counsel In-House Ops, June 2016
5. FRCP Amendments: The Early Returns, Interview with Wendy Butler Curtis, Metropolitan Corporate Counsel, March 2016
6. Update Your e-Discovery Strategy: Practical Guidance to Incorporate the FRCP Amendments into Your Day-to-Day Practice, Webinar with Hon. John Facciola and Wendy Butler Curtis, The Knowledge Group, February 2016
7. Just Follow the Rules! FRCP Amendments Could Be E-Discovery Game Changer, Interview with Hon. John Facciola and Hon. Mary Rowland, Metropolitan Corporate Counsel, July/August 2015
8. Straight from the Bench: How Judges Approach eDiscovery Disputes and View the Proposed Changes to the FRCP, American Bar Association, Women of the Section of Litigation, Panel with Hon. Nan Nolan, Hon. Mary Roland, Hon. Jeff Gilbert, and Anna Torres, Chicago IL, November 2014
9. eDiscovery and Technology-Assisted-Review – It Doesn't Happen "Automagically," Metropolitan Corporate Counsel, June 2014

PUBLICATIONS AND SPEAKING ENGAGEMENTS (PAST 10 YEARS)

1. Application of Search Terms, Declaration, Xereas v. Heiss, et al., District of Columbia, May 23, 2017
2. Format of Production, Affidavit, United States of America, ex rel. Lyle Beauchamp and Warren Shepherd v. Academi Training Center, LLC, Eastern District of Virginia, October 17, 2014

PROFESSIONAL AFFILIATIONS

- DC Bar (Active) and Maryland Bar (Inactive)
- DC Bar Association, eDiscovery and Information Governance Committee
- Women in eDiscovery (WiE), DC Chapter

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PRIOR EMPLOYMENT

- Gilbert LLP, Washington, DC, Partner and Associate, 2001-2011
- Secured recovery of over $1 billion of insurance coverage for mass tort, professional liability, and other large scale losses through negotiation, mediation, arbitration and litigation. Guided team of partners and associates to adopt ediscovery solutions, serving as point person in all multi-party and class action cases. Developed and assessed defensibility of litigation hold and response plans, vendor selection criteria, and service provider contracts. Conducted meet and confer conferences and negotiated preservation and production stipulations. Trained firm in ediscovery case law developments and best practices.
- Dickstein Shapiro LLP, Washington, DC, Associate and Law Clerk, 1998-2000
- Covington & Burling, LLP, Washington, DC, Law Clerk and Paralegal, 1994-1998

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